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MAHATMA GANDHI UNIVERSITY, KOTTAYAM

MGU-UGP (Honours)/ MGU-BBA (Honours)/ MGU-BCA (Honours) Regular Examination October 2026

Fifth Semester -DSC - MG5DSCSWK301-- Legal Information And Human Rights Practice In Social Work

Duration: 2 hours Maximum Marks: 70

Part A - Very Short Answer -Answer all questions - Each question carries **1** marks

1. What is the procedure for amending the Indian Constitution under Article 368? ✓ A Constitution Amendment Bill can be introduced in either House of Parliament and must be passed separately by a special majority. ✓ Amendments affecting certain federal provisions also require ratification by at least half of the State Legislatures, followed by the President's assent.	[U] / [CO2] 1 mark
2. State any three characteristics of Directive Principles of State Policy. ✓ They are contained in Part IV (Articles 36–51) of the Indian Constitution. ✓ They are non-justiciable but fundamental in the governance of the country and aim to establish a welfare state.	[U] / [CO2] 1 mark
3. Recall Legal Services Authorities. ✓ It provides the legal framework for free legal services to eligible persons. ✓ The main authorities are NALSA, State Legal Services Authorities, District Legal Services Authorities and Taluk Legal Services Committees.	[K] / [CO5] 1 mark
4. Explain the primary objective of prisoner rehabilitation. ✓ To reform prisoners and help them develop skills, positive attitudes and responsible behaviour. ✓ To facilitate social reintegration, reduce reoffending and enable prisoners to lead law-abiding lives after release.	[U] / [CO3] 1 mark
5. How Lok Adalats function as an alternative dispute resolution mechanism in india? ✓ Lok Adalats facilitate amicable settlements through conciliation and compromise in eligible pending or pre-litigation disputes. ✓ Their awards are final and binding, have the status of a civil court decree, and are not appealable under the Legal Services Authorities Act, 1987.	[An]/ [CO4] 1 mark
6. Define the primary objectives of NHRC. ✓ The National Human Rights Commission (NHRC) protects and promotes human rights, including rights relating to life, liberty, equality and dignity. ✓ It investigates human rights violations, reviews safeguards, recommends remedial measures and promotes human rights awareness.	[K] / [CO3] 1 mark
7. Discuss probation. ✓ Probation is a non-custodial measure under which an eligible offender is allowed to remain in the community subject to specified conditions and supervision, instead of undergoing imprisonment. ✓ Its objectives are rehabilitation, social reintegration and prevention of reoffending.	[U] / [CO4] 1 mark
8. State the core objective of NGT. ✓ The National Green Tribunal (NGT) provides effective and speedy disposal of cases relating to environmental protection, conservation of forests and natural resources. ✓ It provides relief and compensation for environmental damage and promotes enforcement of environmental rights under applicable laws.	[U] / [CO4] 1 mark
9. What is MTP Act 1971? ✓ The Medical Termination of Pregnancy Act, 1971 is an Indian law regulating the termination of certain pregnancies by eligible registered medical practitioners under specified conditions. ✓ The Amendment Act, 2021 expanded the applicable gestational limits in specified circumstances and strengthened provisions concerning confidentiality.	[U] / [CO5] 1 mark
10. Describe the employer's liability for paying compensation to a worker under the Employees' Compensation Act. ✓ Under the Act, an employer is generally liable to pay compensation for personal injury caused by an accident arising out of and in the course of employment, subject to statutory conditions and exceptions.	[U] / [CO5] 1 mark

Part B -Short Answer-Answer any **5** questions - Each question carries **3** marks

11. Define Human Rights. a) Human rights are the basic rights and freedoms inherent to every human being, irrespective of nationality, gender, caste, religion or social status. b) They are based on the principles of dignity, equality, liberty and non-discrimination. c) The Universal Declaration of Human Rights (UDHR) was adopted by the United Nations General Assembly on 10 December 1948.	[U] / [CO1] 3 mark
12. Mention any three constitutional safeguards available to Scheduled Tribes. a) Article 15(4) and Article 15(5): Enable special provisions for the advancement of socially and educationally backward classes, including Scheduled Tribes. b) Article 46: Directs the State to promote the educational and economic interests of Scheduled Tribes and protect them from social injustice and exploitation. c) Article 244: Provides for the administration of Scheduled Areas and Tribal Areas under the Fifth and Sixth Schedules of the Constitution, respectively.	[U] / [CO3] 3 mark
13. Evaluate any three constitutional values relevant to social work practice. a) Justice: Promotes social, economic and political justice and supports the protection of marginalized groups. b) Equality: Encourages equal opportunities and opposes discrimination based on caste, gender, religion or other grounds. c) Dignity and liberty: Respect human worth, individual freedom and the right to make decisions, which are essential in ethical social work practice.	[U] / [CO3] 3 mark
14. Explain the role of the police in protecting the rights of citizens. a) Protection and prevention: The police protect citizens from crime, violence and threats to life and property. b) Lawful enforcement: They investigate offences and maintain public order while respecting constitutional rights and legal procedures. c) Safeguarding rights: They must protect the rights of arrested persons, prevent custodial abuse and follow due process of law.	[K] / [CO4] 3 mark
15. What is Hindu Marriage Act? a) The law governing marriage among Hindus and other communities specified under the Act. b) It lays down conditions for a valid marriage, including rules relating to age, marital status and prohibited relationships. c) It provides legal provisions for matrimonial remedies, including divorce, judicial separation and restitution of conjugal rights.	[U] / [CO3] 3 mark
16. How a social worker can handle a human right violation? a) Identify and assess: Identify the violation, assess the person's immediate safety and document relevant facts with informed consent. b) Provide support and referral: Offer emotional support and connect the affected person with legal aid, protection services, counselling or appropriate authorities. c) Advocate and follow up: Report or refer the matter through appropriate lawful channels, advocate for the person's rights and monitor the outcome while maintaining confidentiality.	[U] / [CO3] 3 mark
17. Mention any three rights or protections available to women under the Domestic Violence Act, 2005. a) Protection order: Under Section 18, a Magistrate may prohibit the respondent from committing or continuing domestic violence. b) Right to residence: Under Section 17, an aggrieved woman has a right to reside in the shared household, subject to the provisions of the Act. c) Monetary relief: Under Section 20, the Magistrate may order monetary relief to meet expenses and losses resulting from domestic violence, including maintenance where applicable.	[K] / [CO5] 3 mark

Part C - Short Essay -Answer any **3** questions - Each question carries **5** marks

18. Elaborate the role of social workers in promoting awareness of social legislation. a) Legal education b) Access to justice:. c) Monitoring and social action. d) Awareness programmes. e) Advocacy and empowerment.	[E] / [CO1] 5 mark

19. A child reports sexual abuse to a social worker. Prepare an appropriate step-by-step intervention plan considering the provisions of POCSO. a) Ensure safety and build trust b) Report the offence. c) Arrange medical and emotional support. d) Coordinate child protection and legal procedures. e) Ensure confidentiality and follow-up	[S] / [CO5] 5 mark
20. Elaborate the importance of legal protection for LGBTQAI+ persons. a) Equality and dignity b) Recognition of identity. c) Social work intervention d) Protection against discrimination. e) Freedom and privacy	[An] / [CO5] 5 mark
21. Design a community-based intervention programme to increase awareness of child protection laws among parents and teachers. a) Programme objectives and needs assessment. b) Community participation. c) Awareness and training activities d) Reporting and referral mechanisms. e) Monitoring and evaluation.	[C] / [CO5] 5 mark
22. Describe any three objectives of legislation relating to the maintenance and welfare of parents and senior citizens. The objectives of Maintenance and Welfare of Parents and Senior Citizens Act, 2007 a) Maintenance support. b) Simplified legal remedies. c) Protection of life and property. d) Protection from neglect. e) Welfare services.	[K] / [CO5] 5 mark

Part D - Essay -Answer any **2** questions- Each question carries **15** marks

23. How would you use your knowledge of legal information to support a client facing discrimination or exploitation? ✓ **Identify the nature of the violation**. ✓ **Assess immediate safety**. ✓ **Listen and build trust**. ✓ **Collect relevant information** ✓ **Identify applicable legislation**: ✓ **Explain legal rights** ✓ **Facilitate legal aid**. ✓ **Support police complaints**: ✓ **Refer to specialized agencies**. ✓ **Provide psychosocial support**. ✓ **Promote client empowerment**. ✓ **Advocate for rights** ✓ **Coordinate services** to ensure comprehensive assistance. ✓ **Maintain confidentiality**: ✓ **Monitor and evaluate outcomes**.	[S] / [CO2] 15 mark
24. Describe the relevance and features of the Constitution. **A. Relevance of the Constitution** a) Supreme legal framework: b) Protection of fundamental rights:. c) Promotion of social justice: d) Democratic governance:. e) Social welfare:. f) Rule of law: It requires government action to conform to constitutional and legal limits. **g)** National unity: **B. Important features of the Constitution** a) Written and comprehensive Constitution. b) Preamble: It declares the constitutional ideals of justice, liberty, equality and fraternity. c) Fundamental Rights: Part III guarantees important rights,. d) Directive Principles of State Policy: Part IV guides the State in establishing a welfare-	[U] / [CO2] 15 mark

oriented society; these principles are non-justiciable. e) Fundamental Duties: Article 51A specifies duties of citizens, f) Federal system with unitary features: . g) Independent judiciary and judicial review- to examine the laws and government actions. h) Universal adult suffrage and constitutional amendment:	
25. A client is arrested and seeks assistance regarding their rights. Demonstrate how a social worker can guide the client regarding rights during arrest and imprisonment. a. Right to know the grounds of arrest. b. Right to consult a lawyer. c. Right to free legal aid. d. Right to inform a relative or friend. e. Production before a Magistrate:. f. Protection against unlawful detention. g. Protection against self-incrimination. h. Protection against torture and ill-treatment. i. Right to medical examination and treatment. j. Right to dignity and humane treatment. k. Protection of women and children. l. Rights during imprisonment. m. Family and psychosocial support. n. Rehabilitation and reintegration. o. Follow-up and advocacy.	[S] / [CO4] 15 mark
26. What is the Protection of Women from Domestic Violence Act, 2005? a. Definition: The Protection of Women from Domestic Violence Act, 2005 is an Indian law enacted to protect women from domestic violence within domestic relationships. b. Objective: Its primary objective is to provide effective legal protection and accessible remedies for women experiencing domestic violence. c. Definition of domestic violence: Section 3 recognizes physical, sexual, verbal, emotional and economic abuse as forms of domestic violence. d. Persons protected: The Act protects an aggrieved woman who is, or has been, in a domestic relationship with the respondent and alleges domestic violence. e. Right to reside: Section 17 recognizes an aggrieved woman's right to reside in the shared household, subject to the provisions of the Act. f. Protection orders: Under Section 18, a Magistrate may prohibit the respondent from committing domestic violence or engaging in specified harmful acts. g. Residence orders: Section 19 allows the Magistrate to issue appropriate residence-related orders to protect the aggrieved woman. h. Monetary relief: Section 20 provides for monetary relief to meet expenses and losses resulting from domestic violence, including maintenance where applicable. i. Custody orders: Under Section 21, the Magistrate may grant temporary custody of children to the aggrieved woman and regulate visitation where appropriate. j. Compensation orders: Section 22 allows compensation and damages for injuries, including mental torture and emotional distress caused by domestic violence. k. Interim and ex parte orders l. Role of Protection Officers. m. Role of service providers. n. Legal assistance and support. o. Role of social workers to identify abuse, assess safety risks, provide psychosocial support.	[A] / [CO5] 15 mark